

with the consent of the tenant for life, with a direction to lay out the proceeds, with all convenient speed, in another purchase, and in the meantime to invest them upon some proper security. For determining upon what occasions the trustees would be justified in proceeding to a sale, it will be proper to notice, in the words of Lord Eldon, the intention of the settlement in so framing the power: — “The object of the sale,” he said, “must be to invest the money in the purchase of another estate, to be settled to the same uses, and the trustees are not to be satisfied with probability upon that, but it ought to be with reference to an object at that time supposed practicable, or, at least, this Court would expect

some strong purpose of family prudence justifying [*428] the conversion, if it is likely to *continue money” (a).

Sir W. Grant is said to have concurred in the same sentiments (b), so that clearly the trustees as between them and their *cestuis que trust* would not be justified in selling to gratify the caprice or promote the exclusive interest of the tenant for life. It might happen that particular circumstances might call for an immediate sale, as where an extremely advantageous offer is made, or there is a prospect of great deterioration by abstaining from exercising the power; but, generally speaking, the trustees ought not to convert the estate without having another purchase in view, and then not for the mere purpose of conversion, but in the honest exercise of their discretion, for the benefit of all parties claiming under the settlement (c). The power of investing the proceeds upon some security in the meantime was not meant to authorise the *continuance* of the property as *money*, but only to meet the exigencies of particular circumstances, as where the trustees are disappointed of the contemplated new purchase, or the state of the title to the new purchase leads to necessary delay.

19. **Effect of the Drainage Acts.** — It is also to be noticed where the lands have been charged by the tenant for life

(a) *Mortlock v. Buller*, 10 Ves. 308, 309.

(b) *Lord Mahon v. Earl of Stanhope*, cited 2 Sug. Pow. 412.

(c) See *Cowgill v. Lord Oxmantown*, 3 Y. & C. 369; *Watts v. Girdlestone*, 6 Beav. 188; *Marshall v. Sladden*, 4 De G. & Sm. 468; [*Jaques v. Wilson*, W. N. 1880, p. 83.]